

LEARNER WORKBOOK

FULL NAME & SURNAME	
ID NUMBER:	
NAME OF ASSESSOR	
DATE OF ASSESSMENT	
VENUE	

	ACHIEVED	NOT ACHIEVED
KNOWLEDGE		
SKILLS		

Signature of learner

Signature of Assessor

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This material has been compiled based on the **UNIT STANDARD 244184 APPLY LEGAL ASPECTS IN A SECURITY ENVIRONMENT.**

The program has been accredited by SASSETA in the Republic of South Africa.

Material compiled by: Training Dynamics Africa

HOW THIS LEARNER WORKBOOK IS COMPILED

This learner workbook has been compiled for personnel to explain which legislation impacts on the operations and functions of the security sector. They will be able to understand how and when proportionality of force can and may be used. They will also be able to explain situations and indicate how they should be dealt with in line with legal prescripts.

1. Describe legislation pertaining to the security industry
2. Describe common law principles that relate to the security industry
3. Apply legal prescripts to the private security industry

You have to study the content and guidelines given in your learner reference guide to complete this workbook.

Remember that this completed workbook must be handed in as it will form part of your formative assessment and will play a role in awarding you the required 08 credits that are to be achieved upon completion of this module.

Write neatly and legibly and ensure that you do not simply copy the information contained in the learner reference guide into your workbook. Give your own opinion and ideas where applicable and write the answers in your own words to indicate your level of understanding and learning.

Good luck with the completion of this workbook.

LEARNING UNIT 1

Human rights

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Confirm that the Constitution of South Africa is the supreme law of the Republic, especially in relation to South African Legislation
2. confirm that the Bill of Rights are contained in the Constitution of South Africa is the cornerstone of democracy from which all human rights are derived
3. Identify the basic human rights that citizens of South Africa have according to
4. sections 9, 10, 11, 12 and 14 of the Constitution of South Africa by relating them to their relevant application within other firearm-related legislation

LEARNER ACTIVITY 1

HUMAN RIGHTS: What do you understand by the concept “human rights” and what are the main aspects to consider when talking about the human rights of the people?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2**BILL OF RIGHTS:** What is the purpose of the Bill of Rights?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

Give 5 (five) examples of rights contained in the Bill of Rights that are relevant to the security services.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4

Which Law in South Africa enjoys supremacy over all other legislation?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5**Multiple choice questions. Choose one or more of the following:**

- 1. In terms of the Constitution, everyone has the following rights:**
 - [A] The right to acquire dignity and respect
 - [B] The right to freedom and security of the person
 - [C] The right to privacy
 - [D] The right to remain silent
 - [E] The right to equal protection and indemnity when using a firearm

- 2. Which of the following have more rights in terms of the Constitution?**
 - [A] Police and Security Officials
 - [B] Convicted criminals
 - [C] Permanent residents of South Africa
 - [D] Immigrants in South Africa
 - [E] All of the above

- 3. How do the Police limit the rights of people in terms of the Criminal Procedure Act?**
 - [A] Arrest
 - [B] Detention
 - [C] Search and seizure
 - [D] Murder
 - [E] All of the above

- 4. There may not unfairly be discriminated directly or indirectly against anyone on one or more grounds, including:**
 - [A] Race and Gender
 - [B] Marital status or sexual orientation
 - [C] Ethnic or social origin
 - [D] Beliefs or Culture
 - [E] All of the above

- 5. Everyone has the right to freedom and security of the person, which includes the right-**
 - [A] Not to be deprived of freedom
 - [B] Not to be detained without trial
 - [C] Not to be tortured without good reason
 - [D] Not to be detained before seeking legal aid
 - [E] All of the above

6. Which of the following relates to the Right to Freedom of Movement and residence:

- [A] Every person in South Africa as a right to freedom of movement
- [B] Everyone has the right to leave the Republic of South Africa
- [C] Every citizen has the right to reside anywhere in South Africa
- [D] Every citizen has the right to a passport
- [E] All of the above

7. Which of the following relates to the Right to Housing:

- [A] Everyone has the right to have access to adequate housing
- [B] The state must take reasonable measures to achieve the progressive realization of this right
- [C] No one may have their home demolished without an Order of Court
- [D] A person may only be evicted from their home when in arrears with payments
- [E] Only High Court Legislation may permit arbitrary evictions

8. Which of the following relates to the Rights of Children:

- [A] Every child has the right to earn an income from the age of 13
- [B] Every child has the right to basic nutrition, shelter, health care services etc.
- [C] Every child has the right to be abused or neglected
- [D] Every child has the right to family or parental care
- [E] All of the above

9. Arrested, detained and accused persons have the right to:

- [A] Remain silent and to be informed of the consequences if not remaining silent
- [B] Not to be compelled to make any confessions or admissions that could be used in evidence against him
- [C] To be brought before a Court of Law within 72 hours
- [D] To be released from detention immediately after the first court appearance
- [E] To be released from detention if the interests of justice permit subject to reasonable conditions

10. Everyone who is detained has the right :

- [A] to be detained at his choice of location
- [B] to have a legal practitioner assigned to the detainee by the State at the State's expense
- [C] to communicate with and be visited by that person's doctor or religious counselor
- [D] to challenge the lawfulness of the detention in person before a court
- [E] to be informed of the reasons for being detained

Requirements achieved	YES		NO	
Comments in support of decision				

STUDY UNIT 4

PSIRA Statutory code of conduct

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain the security officers obligation towards PSIRA, clients, general public and the private security industry
2. Explain the purpose of the Code of Conduct published in terms of the PSIRA Act 56 of 2001
3. Know about the existence and implications of the Code of Conduct published in terms of the PSIRA Act 56 of 2001
4. Know under which conditions he would be convicted of improper conduct according to Section 2 of the Code of Conduct as published in terms of the PSIRA Act 56 of 2001
5. Explain the requirements that must be met by the security businesses and security officers with regard to the carrying of firearms in terms of Regulation 13 (5) of the PSIRA Act 56 of 2001

LEARNER ACTIVITY 1

The purpose of this Code is to provide binding rules that all security service providers and employers of in-house security officers must obey in order to:

[A] _____

[B] _____

[C] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2**This Code of Conduct is applicable to:**

[A] _____

[B] _____

[C] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

Name 5 (five) general obligations that the security service provider has towards PSIRA

[A] _____

[B] _____

[C] _____

[D] _____

[E] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4**GENERAL OBLIGATIONS TOWARDS THE PUBLIC AND THE PRIVATE AND THE PRIVATE SECURITY INDUSTRY**

A security service provider must at all times act in a manner which:

- [A] _____

- [B] _____

- [C] _____

- [D] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5**GENERAL OBLIGATIONS TOWARDS CLIENTS AND ISSUES RELATED THERETO**

A security service provider must, whenever a client reasonably needs information to make an informed decision, furnish sufficient and correct information which is within the knowledge of the security service provider, to the client, including information concerning:

- [A] _____

- [B] _____

- [C] _____

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 6**PROVISIONS REGARDING CERTAIN CATEGORIES AND CLASSES OF SECURITY SERVICE PROVIDERS AND DIFFERENT TYPES OF SECURITY SERVICES**

Name 2 (two) reasonable steps a security service provider must take before a security officer in his employ is made available to render a security service to any person

[A] _____

[B] _____

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 7**PRIVATE INVESTIGATORS**

A security service provider performing the function of a private investigator may not perform any act which interferes with a Security Service or an organ of State in performing any function that it may lawfully perform.

Name 3 (three) other points that is also applicable to the performance of functions of private investigators.

[A] _____

[B] _____

[C] _____

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 8**LOCKSMITHS**

What is a security service provider, performing the functions of a locksmith, legally entitled to do with respect to a locking mechanism of any nature?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 9**SECURITY SERVICE PROVIDERS INSTALLING, SERVICING OR REPAIRING SECURITY EQUIPMENT OR PERFORMING CERTAIN FUNCTIONS REGARDING MONITORING DEVICES**

Discuss the duties and performance of a security service provider installing, servicing and repairing security equipment

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 10**PROVISIONS REGARDING IMPROPER CONDUCT, THE ENFORCEMENT OF THE CODE AND OTHER MATTERS RELATING THERETO:**

A security service provider who has been found guilty of improper conduct is subject to certain penalties. Briefly name 3 (three) of these penalties:

[A] _____

[B] _____

[C] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 11**PROCEDURES**

Where can you find the procedures for the enforcement of the Code of Conduct by PSIRA?

[A] _____

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain the security officers obligation towards the Authority, clients, general public and the private security industry			
2	Explain the purpose of the Code of Conduct published in terms of the PSIRA Act 56 of 2001			
3	Know about the existence and implications of the Code of Conduct published in terms of the PSIRA Act 56 of 2001			
4	Know under which conditions he would be convicted of improper conduct according to Section 2 of the Code of Conduct as published in terms of the PSIRA Act 56 of 2001			
5	Explain the requirements that must be met by security businesses and security officers with regard to the carrying of firearms in terms of Regulation 13 (5) of the PSIRA Act 56 of 2001			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 3

Criminal Law

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Known the requirements of a crime
2. Identify a crime by applying the requirements of a crime
3. Define the term private defense by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles
4. Explain the conditions that an attack on any human being must comply with according to the common law principles before a defensive action will be considered lawful
5. Explain the conditions that a defensive action must comply with in the event of an illegal attack on any human being by considering the principles of the reasonable man, the proportional use of force and the justifiability of the defensive action according to accepted common law principles
6. Define the term “necessity” by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles
7. Explain the conditions that an Act of necessity must comply with according to the common law principles before it will be considered lawful

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:****THE REQUIREMENTS OF A CRIME****THE CONCEPT OF LEGALITY**

- 1. In determining whether a person is criminally liable, the first question to be asked is:**
 - [A] Whether the person has previously been arrested for a criminal offence
 - [B] Whether the type of conduct allegedly committed by him is recognized by the law as a crime
 - [C] Whether the type of conduct allegedly committed by him is of civil nature
 - [D] Whether the type of conduct allegedly committed by him is a contravention of a legal rule
 - [E] All of the above

- 2. What is The Principle of Legality also known as?**
 - [A] Ignorantia facti excusat
 - [B] In statu quo
 - [C] Modus operandi
 - [D] Ita lex scripta est
 - [E] Nullum crimen sine lege

ACT OR OMISSION

- 3. The term 'act' as used in criminal law refers to:**
 - [A] Criminal thoughts and decisions
 - [B] A voluntary human act or omission
 - [C] Type of conduct by a human being
 - [D] Presentation of a situation
 - [E] All of the above

- 4. When is an 'act' punishable in criminal law?**
 - [A] When the act cannot be controlled by will or intellect
 - [B] When the act can be controlled by will or intellect
 - [C] When the act is voluntary
 - [D] When the act is not voluntary

UNLAWFULNESS**5. Which of the following acts are unlawful?**

- [A] Attacking another human being to help someone
- [B] To assault someone who is looking for trouble
- [C] The intentional killing of another human being
- [D] The killing of another human being in self-defense
- [E] Driving over the speed limit in case of emergency

PRIVATE DEFENCE**6. A person acts in private defense if:**

- [A] He uses force to repel an unlawful attack which already commenced
- [B] He feels threatened in a certain situation and needs to protect his own interest
- [C] He attacks a policeman in order to avoid being arrested
- [D] He escapes from custody in order to regain his freedom
- [E] He dislikes a certain person and therefore assaults him

7. What are the requirements of an attack in order to make private defense**8. lawful?**

- [A] The attack must be unlawful
- [B] The attack must be against interests which ought to be protected
- [C] The attack must be threatening but not yet completed
- [D] The attack must be directed at the defender
- [E] All of the above

8. What are the requirements of an act of defense to make same lawful?

- [A] When a person thinks he is in danger if another person is under the influence of
- [B] alcohol or drugs
- [C] The act of defense must be directed towards the attackers friend in order to scare him off
- [D] The act of defense must be as harmful as possible in order to kill the attacker
- [E] The attacked person must be aware of the fact he is acting in private defense
- [F] The act of defense must be directed towards the attacker and must be necessary

NECESSITY**9. A person acts out of necessity, and his conduct is therefore lawful if:**

- [A] he acts in the protection of his own or somebody else's life
- [B] he suspects that a person might attack somebody else
- [C] he heard stories of the person and sees it necessary to teach him a lesson
- [D] he acts in a way to prevent danger
- [E] He acts in a way to disarm his attacker and in the process broke the attacker's arm

10. When executing an arrest, when may force be used in order to effect same?

- [A] When the person to be arrested is under the influence of alcohol and on the verge of passing out
- [B] When the person to be arrested is kicking at the policeman
- [C] When the person to be arrested is injured and cannot walk with the policeman
- [D] When the person to be arrested is resisting arrest
- [E] All of the above

11. Which of the following relates to the term 'necessity':

- [A] When the act stems from human conduct
- [B] When the act stems from chance circumstances
- [C] When an attack is directed against an unlawful attack
- [D] When the attack is directed against the interest of an innocent third party
- [E] When the attack takes place in the spirit of the moment in order to protect your property
- [F]

Requirements achieved	YES	NO
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Known the requirements of a crime			
2	Identify a crime by applying the requirements of a crime			
3	Define the term private defense by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles			
4	Explain the conditions that an attack on any human being must comply with according to the common law principles before a defensive action will be considered lawful			
5	Explain the conditions that a defensive action must comply with in the event of an illegal attack on any human being by considering the principles of the reasonable man, the proportional use of force and the justifiability of the defensive action according to accepted common law principles			
6	Define the term "necessity" by relating it to its contextual application as grounds of justification, which will render a conduct that would normally be construed as unlawful to be lawful according to the common law principles			
7	Explain the conditions that an Act of necessity must comply with according to the common law principles before it will be considered lawful			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 4

Specific crimes

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Interpret the meanings of the various definitions of first schedule offences correctly, by interrelating them with the relevant sections of the Criminal Procedure Act that deal with arrest and the use of force in order to affect the arrest, searching and seizure of articles

LEARNER ACTIVITY 1

Name 3 (three) crimes that can be committed against the State:

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2

Explain in your own words the meaning of “High Treason”

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

Who can be a perpetrator of high treason?

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 4

Explain in your own words the meaning of “Corruption”

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5

Give one word for the following definition:

“The wrongful and intentional acquisition of a benefit, from some other person, by applying pressure to that person which induces him to part with the benefit”

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 6

A Person causes the death of another person unlawfully because of negligence. Is this seen as:

- [A] Murder
[B] Culpable Homicide

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 7**A person commits assault if:**

[A] He unlawfully and _____ applies force,
_____ or _____, to the person of another or;

[B] Inspires a belief in another person that _____ is immediately to be applied to him.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 8

8. What are the 4 (four) basic requirements that must be complied with before a person can be convicted of theft?

[A] an act of _____

[B] in respect of _____

[C] which takes place _____ and

[D] _____

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 9**Multiple choice questions. Choose one or more of the following:****1. Indicate the different forms of theft:**

- [A] Unlawful removal of property
- [B] Extortion
- [C] Perjury
- [D] Embezzlement
- [E] Corruption

2. For property to be capable of being stolen it must be:

- [A] Movable property
- [B] Immovable property
- [C] Property that does not belong to you or anyone else
- [D] Your own property which is in the lawful possession of someone else
- [E] Personal property repossessed by yourself

3. When an theft occurs by means of violence it is called

- [A] Assault
- [B] Robbery
- [C] Culpable homicide
- [D] Extortion
- [E] Bribery

4. When you knowingly receive stolen property, you are making yourself guilty of an offence and can be found guilty of being:

- [A] An accomplice
- [B] An accessory after the fact
- [C] A perpetrator
- [D] A fraudster
- [E] An extortionist

MALICIOUS INJURY TO PROPERTY**5. Malicious injury to immovable property:**

- [A] Theft
- [B] Arson
- [C] Housebreaking
- [D] Robbery
- [E] Sedition

6. What is considered as “housebreaking”?

- [A] The removal of burglar bars to gain entry to the property
- [B] Entering through a door left open by the occupants
- [C] Illegal trespassing on your property
- [D] Entering the property upon invitation of the occupants
- [E] Occupants gaining access to the house through a window after being locked out

Requirements achieved	YES	NO
Comments in support of decision		

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Interpret the meanings of the various definitions of first schedule offences correctly, by interrelating them with the relevant sections of the Criminal Procedure Act that deal with arrest and the use of force in order to affect the arrest, searching and seizure of articles			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 5

Effecting and arrest

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Apply the human rights of citizens of the country, and their limitations, in their viable contexts within the Criminal Procedure Act 51 of 1977
2. Explain how to apply the provisions of section 39 of the Criminal Procedure Act 51 of 1977, which explains the manner in which an arrest should be executed
3. Explain how to apply the provisions of section 49 of the Criminal Procedure Act 51 of 1977, which deals with the use of force, including lethal force and the use of a firearm when executing a lawful arrest
4. Explain how to handle a lawfully arrested person correctly, in accordance with the requirements of Section 50 of the Criminal Procedures Act 51 of 1977 and Section 35 of the South African Constitution
5. Explain under which conditions the security officer must assist a police official in effecting an arrest according to the Criminal Procedures Act 51 of 1977

LEARNER ACTIVITY 1

The Constitution guarantees my right to _____, freedom of _____, speech and _____ etc. as long as my _____ do not infringe on the _____ of another individual or _____. If someone _____ on my rights, I can demand the police to _____. If there is not sufficient time to notify the police, I can, within the _____ of the Law, act to _____ myself against the _____ who _____ my life or my _____.

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2**Multiple choice questions. Choose one or more of the following:**

- 1. When can a lawful arrest be executed in accordance with the Criminal Procedures Act?**
 - [A] If a person trespasses on another persons property other than his own
 - [B] If a person trespasses on his own property
 - [C] If a person trespasses on the property that he has been appointed to safeguard by the owner of the property
 - [D] If a person trespasses on another persons property other than his own and maliciously damages the property
 - [E] All of the above

- 2. A private person has the right to arrest someone who he suspects committed a First Schedule offense. Which of the following is regarded as First Schedule Offenses:**
 - [A] Assault
 - [B] Crimen injuria
 - [C] Rape
 - [D] Murder
 - [E] All of the above

- 3. Arrest infringes certain rights of the accused which are protected in the Bill of Rights in the Constitution. These rights are:**
 - [A] A right not to be discriminated against
 - [B] A right not to be deprived of freedom
 - [C] A right to privacy
 - [D] A right to human dignity
 - [E] All of the above

- 4. Section 47 of the Criminal Procedure Act, concerning the arrest of another**
- 5. person, states that any person, when called upon to do so by a police official, must assist them in the arrest. This is applicable to:**
 - [A] Any person (especially citizens in this country) who is 16 years of age and older
 - [B] Only males of 18 years and older
 - [C] Both males and females of adult age
 - [D] Males of 16 and older
 - [E] All of the above

5. The law regarding the arrest of a person relates to the following:

- [A] The purpose of an arrest is to bring persons suspected of having committed offences before a court for trial
- [B] Where an arrest is called for, no force may be used by a private citizen in order to carry out the arrest
- [C] A suspect may be shot should he flee the scene of an accident
- [D] A Where force is necessary, only the least degree of force may be used in order to carry out the arrest
- [E] All of the above

6. When may force be used during an attempted arrest?

- [A] When the suspect attempts to flee
- [B] When the suspect is under the age of 16
- [C] When the suspect is resisting the arrest
- [D] When the suspect is stronger and bigger than the arrestor
- [E] Force may never be used

7. When a citizen refuses to assist a police official with an arrest, he can be imprisoned or be given a fine. What reasons will be accepted by a court in excusing a person from assisting the police official requesting assistance?

- [A] When the person fears for his own safety
- [B] When the person is not a citizen of this country
- [C] When the person is physically disabled in some way
- [D] When the person did not understand the language of the police official
- [E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 3

**** TRUE OR FALSE:** Please mark the correct answer with a right mark to indicate the correct answer.

Nr.	Statement	True 	False
1.	The decision to perform an arrest must be based on objective criteria and the arrester must be certain that he can justify his decision to perform an arrest.		
2.	You are the first person to arrive at a murder scene. The victim is lying on the ground covered in blood. A person is bending over the victim with a knife in his hand. Although you have not seen the person actually stabbing the victim, you are allowed to arrest him and the arrest will be deemed lawful.		
3.	Any police official may call upon any person over the age of 13 to assist him in arresting a person.		
4.	Police officials may shoot at their suspect should the suspect be running away from them after being caught housebreaking.		
5.	The only way to bring a suspect before a court of trial, is to arrest him.		
6.	An arrest may be seen as a form of punishment of a suspect.		

Requirements achieved	YES	NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Apply the human rights of citizens of the country, and their limitations, in their viable contexts within the Criminal Procedure Act 51 of 1977			
2	Explain how to apply the provisions of section 39 of the Criminal Procedure Act 51 of 1977, which explains the manner in which an arrest should be executed			
3	Explain how to apply the provisions of section 49 of the Criminal Procedure Act 51 of 1977, which deals with the use of force, including lethal force and the use of a firearm when executing a lawful arrest			
4	Explain how to handle a lawfully arrested person correctly, in accordance with the requirements of Section 50 of the Criminal Procedures Act 51 of 1977 and Section 35 of the South African Constitution			
5	Explain under which conditions the security officer must assist a police official in effecting an arrest according to the Criminal Procedures Act 51 of 1977			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 6

The Liquor Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Know the role of the security officer during the Liquor Act as contemplated in the Liquor Act
2. Explain the functions of an inspector as contemplated in the Liquor Act
3. Know the prohibitions to supply liquor to a minor

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:****PURPOSE OF THE ACT****1. What is the purpose of the Liquor Act?**

- [A] To establish norms & standards to maintain economic unity in the liquor industry
- [B] To ensure that the government benefits from the sale of liquor in
- [C] To assist the government, minors and adults have easy access to liquor
- [D] To provide for measures to promote cooperative government in the area of liquor regulations
- [E] All of the above

PROHIBITIONS TO SUPPLY LIQUOR OR ETHYLATED SPIRITS TO A MINOR**2. In terms of Section 10 of this Act:**

- [A] A person may not sell or supply liquor to a minor
- [B] A minor may only consume alcohol in the presence of the parents
- [C] A minor may be forced to produce an identity document when purchasing alcohol
- [D] A minor has the right to freedom and may not be prohibited to purchase alcohol
- [E] A minor may not make a false claim about age in order to induce a person to sell

FUNCTIONS OF INSPECTORS**3. A liquor inspector may:**

- [A] investigate complaints submitted to the inspector in the prescribed manner
- [B] Monitor and enforce compliance of the Liquor Act
- [C] Supply liquor in small quantities to minors
- [D] Question any person at the premises where an inspection is conducted
- [E] All of the above

ROLE OF SECURITY OFFICERS**4. Where may alcohol be sold, served or consumed?**

- [A] In licensed areas of hotels
- [B] In the privacy of your own house
- [C] Outside beer gardens
- [D] In any fast food restaurant
- [E] At any function attended by minors

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Know the role of the security officer during The Liquor Act as contemplated in the Liquor Act			
2	Explain the functions of an inspector as contemplated in the Liquor Act			
3	Know the prohibitions to supply liquor to a minor			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 7

The Explosives Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Know the purpose of the Act
2. Explain the important legislative requirements pertaining to the Act

LEARNER ACTIVITY 1

What is the purpose of the Explosives Act?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2

What are the important legislative requirements that security officers should take note of?

[A] _____

[B] _____

[C] _____

[D] _____

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Know the purpose of the Act			
2	Explain the important legislative requirements pertaining the Explosives Act			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 8

Dangerous Weapons Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Define the term “dangerous weapon”
2. List the items that are classified as dangerous weapons
3. List the items that are not dangerous weapons according to this Act

LEARNER ACTIVITY 1**PURPOSE OF THE DANGEROUS WEAPONS ACT**

Explain in your own words what the purpose of this Act entails:

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2

In your own words, give a definition for “dangerous weapon”:

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

In your own words, give a definition for “firearm”:

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4**PROHIBITIONS OF THE POSSESSION OF DANGEROUS WEAPONS,
FIREARMS AND CERTAIN OTHER OBJECTS**

Who, by law, may prohibit a person from being in possession of a dangerous weapon?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5**PROHIBITIONS OF THE POSSESSION OF DANGEROUS WEAPONS,
FIREARMS AND CERTAIN OTHER OBJECTS**

Who, by law, may prohibit a person from being in possession of a dangerous weapon?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 6

If a person is caught with an object in his possession that is the replica of a fire-arm, can he be found guilty of an offence? Motivate your answer.

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 7**PENALTIES WHEN DANGEROUS WEAPONS OR FIREARMS ARE USED
IN THE COMMISSION OF OFFENCES INVOLVING VIOLENCE**

Can a person be sentenced to imprisonment when caught with a dangerous weapon? Motivate your answer.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Define the term “dangerous weapon”			
2	List the items that are classified as dangerous weapons			
3	List the items that are not dangerous weapons according to this Act			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 9

Firearms Control Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain the criteria that a license applicant needs to adhere when he/she are transporting firearms according to the Firearms Control Act 60 of 2000
2. Explain the criteria of a transporters permit according to the Firearms Control Act 60 of 2000
3. Explain the criteria of a transporters permit according to the Firearms Control Act 60 of 2000
4. Explain the reason why a transporters permit will be cancelled

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:****STORAGE, TRANSPORT AND CARRYING OF FIREARMS AND AMMUNITION**

1. **SECTION 84 - No person may carry a firearm in a public place unless the firearm**

- [A] Is carried in a holster or similar holder designed for same
- [B] Is not bigger than a small sized handgun
- [C] Is in a rucksack or similar holder
- [D] Is the registered property of the carrier
- [E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 2

SECTION 86 - No person may transport any firearm or ammunition for reward without being in possession of a firearm transport's permit. Who issues this permit and when may this permit be issued?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

The holder of a permit issued in terms of this Act, must at the request of any police official, produce the following for inspection:

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 4

When is the Registrar entitled to cancel a firearm transport's permit?

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 5

Who keeps record of prescribed information in respect of all firearm transporter's permits issued in terms of this Act?

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain the criteria that a license application needs to adhere when he/she are transporting firearms according to the Firearms Control Act 60 of 2000			
2	Explain the criteria how one/security officers should carry his/her firearms at a public gathering according to the Firearms Control Act 60 of 2000			
3	Explain the criteria of a transporters permit according to the Firearms Control Act 60 of 2000			
4	Explain the reason why a transporters permit will be cancelled			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 10

Trespassing

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Interpret the definition of trespass according to the Trespass Act, Act 6 of 1959 within its rightful context and application by a security officer
2. Explain what is meant by the term “the lawful owner” as used in the Trespass Act, Act 6 of 1959
3. Discuss the role of the security officer in securing property in terms of the Trespass Act, Act 6 of 1959

LEARNER ACTIVITY 1

Multiple choice questions. Choose one or more of the following:

INTERPRETATION OF THE DEFINITION

1. A person can only legally enter a building when the following has taken place:

- [A] He must have permission to enter the building
- [B] He must be a family member of the owner of the building
- [C] He must be in the building during working hours
- [D] He must be a friend of the security officer
- [E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

LEARNER ACTIVITY 2

In your own words, give a definition for “public premises”

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

In your own words, give a definition for “public vehicle”

Requirements achieved	YES		NO	
Comments in support of decision				

LEARNER ACTIVITY 4

In your own words, give a definition for “trespassing”

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Interpret the definition of trespass according to the Trespass Act, Act 6 of 1959 within its rightful context and application by a security officer			
2	Explain what is meant by the term “the lawful owner” as used in the Trespass Act, Act 6 of 1959			
3	Discuss the role of the security officer in securing property in terms of the Trespass Act, Act 6 of 1959			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 11

Searching

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain how to apply the correct procedures according to the Criminal Procedures Act 51 of 1977 with regard to the searching of persons and premises and these seizure of articles

LEARNER ACTIVITY 1**Multiple choice questions. Choose one or more of the following:**

1. The State may, in accordance with the provisions of this Act, seize the following:

- [A] Articles which was assumed to be used in a criminal offence
- [B] Any article which may be used as evidence in a court case
- [C] Any article which was used in the commission of an offence
- [D] Any article belonging to the State
- [E] All of the above

2. Who is allowed inside the premises whilst the police are searching same?

- [A] Nobody is allowed except the police or security official
- [B] The owner of the premises
- [C] The person in charge of the premises, even if he isn't the owner of same
- [D] Friends of the owner of the premises
- [E] All of the above

3. Premises may be searched when it is suspected that the following might be on the premises:

- [A] Intoxicating liquor
- [B] Dependence-producing drugs
- [C] Arms and ammunition
- [D] Explosives
- [E] All of the above

4. Who is allowed to conduct strip searches on female persons?

- [A] A female person may not be strip searched
- [B] Any security personnel
- [C] Any police official
- [D] Another female police official
- [E] All of the above

5. After a person has been arrested, who may search such person?

- [A] The Security official
- [B] The Police

Requirements achieved	YES		NO	
Comments in support of decision				

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain how to apply the correct procedures according to the Criminal Procedures Act 51 of 1977 with regard to the searching of persons and premises and these seizure of articles			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 12

The Public Gatherings Act

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Know the role of the Security Officer during public gatherings as contemplated in this Act
2. Explain the importance of the Public Gatherings Act during the execution of the security officer's duty

LEARNER ACTIVITY 1**What is the PURPOSE OF THE ACT?**

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2

When an organization seeks to hold a protest “march” or gathering, a notification form must be filling terms of Section 321 of the ct, providing the following information:

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Know the role of the security officer during public gathering as contemplated in the Public Gatherings Act of 1993			
2	Explain the importance of the Public Gatherings Act during the execution of the security officers duty			

Evidence Collector Signature

Date

Security Officer Signature

Date

LEARNING UNIT 13

Liabilities

LEARNING OUTCOMES

A learning credited with this unit will be able to:

1. Explain what is meant by the term 'vicarious liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer
2. Explain what is meant by the term 'civil liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer

LEARNER ACTIVITY 1**VICARIOUS LIABILITY**

Explain what is meant by the term “vicarious liability”

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 2

Explain what is meant by the term “civil liability”

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 3

When will members of a partnership be held liable for the actions of the other?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 4

What does the term “liability” refer to?

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 5

State the relationship between parties that will cause one person to be held liable for the actions of another

Requirements achieved	YES		NO	
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Comments in support of decision

LEARNER ACTIVITY 6

Will a Security Officer be held liable in his personal capacity for an act that caused damage and injury to another person or will the security service provider be held liable? Motivate your answer.

Requirements achieved	YES		NO	
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Comments in support of decision

SELF-ASSESSMENT

The learner must make use of the following self-evaluation checklist to rate himself against the learning outcomes of this particular training module in establishing the level of mastery of the information.

1. Not able to comply
2. Reasonable compliance (Not acceptable for final evaluation)
3. Able to comply fully

LEARNING OUTCOMES		1	2	3
1	Explain what is meant by the term 'vicarious liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer			
2	Explain what is meant by the term 'civil liability' by using examples of practical acts and deeds, which involve for instance the use of a firearm by a security officer			

Evidence Collector Signature

Date

Security Officer Signature

Date